

Sagar Taank & Ors vs The State Gnct Of Delhi & Anr on 5 September, 2023

Author: Sudhir Kumar Jain

Bench: Sudhir Kumar Jain

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IN THE HIGH COURT OF DELHI AT NEW DELHI

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CRL.M.C. 6406/2023 & CRL.M.A. 24023/2023

SAGAR TAANK & ORS.

THE STATE GNCT OF DELHI & ANR.

Through: Mr. Utkarsh, APP

M.L. Meena, P.S

Mr. Arun Kumar,

Chauhan, Advoc

in person

CORAM:

HON'BLE DR. JUSTICE SUDHIR KUMAR JAIN
ORDER

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05.09.2023

[Through Hybrid Mode]

1. The present petition is filed under section 482 Cr.P.C. for quashing proceedings arising out of FIR bearing no.0482/2018 dated 26.11.2018 registered under sections 498A/406/34 IPC at P.S. Sagar Pur along with consequential proceedings.

2. Issue notice.

3. Mr. Utkarsh, Additional Public Prosecutor assisted by Investigating Officer, SI M.L. Meena, P.S. Sagar Pur accepts notice on behalf of the respondent no. 1/State. The respondent no. 2 who is present in person along with the counsel, accepts notice.

4. The petitioner no. 1 and the respondent no. 2 got married on 12.11.2016 at Delhi according to Hindu rites and ceremonies and no child This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 16/09/2023 at 16:52:19 was born out of their marriage. The petitioner no. 1 and the respondent no.2 due to matrimonial differences, started to live separately w.e.f. 17.05.2017 without any cohabitation.

5. The respondent no. 2 filed petition under section 12 of Protection of Women from Domestic Violence Act, 2005 bearing Ct. Case no. 7581/2017 titled as Meenakshi V Sagar Tank & Ors. which was stated to be pending before the Court of Ms. Shivangi Vyas, MM (Mahila Court), Patiala House Courts, Delhi. The respondent no.2 also filed a petition for grant of divorce under section 13 (1)(ia) and section 13(1)(ib) of Hindu Marriage Act, 1955 bearing HMA no.1/2020 which was stated to be pending before the concerned Court of Family Court, Patiala House Courts, Delhi. It is stated by the concerned parties that these petitions have already been withdrawn by the respondent no.2.

6. The respondent no.2 also got registered present FIR bearing no. 0482/2018 dated 26.11.2018 under sections 498A/406/34 IPC at P.S. Sagar Pur, wherein the petitioners were implicated. The petitioner nos. 2 and 3 are the family members/relatives of the petitioner no. 1. The petitioners and the respondent no. 2 are identified by SI M.L. Meena, P.S. Sagar Pur as well as their respective counsel. After completion of investigation, the charge-sheet was filed and the trial is stated to be pending in the concerned court of Ms. Shivangi Vyas, MM (Mahila Court), Patiala House Courts, Delhi.

7. The petition bearing HMA no. 1/2020 was referred to Counselling Cell, Family Courts, Patiala House, wherein the petitioner no.1 and the respondent no.2 have settled their disputes vide Settlement dated 09.08.2021 and have agreed to dissolve their marriage by decree of divorce by mutual consent as per section 13B of Hindu Marriage Act, 1955. This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 16/09/2023 at 16:52:19 petitioner no.1 has also agreed to pay Rs.6,50,000/- to the respondent no.2 towards the full and final settlement of all her claims/legal entitlements (past, present and future) arising out of their marriage including permanent alimony/maintenance/istridhan etc. and miscellaneous and legal expenses as per the schedule as mentioned in the Settlement. The petitioner no.1 has already paid Rs. 4,00,000/- to the respondent no.2 which is acknowledged by the respondent no.2. The petitioner no.1 has delivered a demand draft of amounting to Rs.2,50,000/- dated 06.06.2023 bearing no.017355 drawn on Bank of Baroda towards the balance settled amount as per the schedule as mentioned in the Settlement Agreement.

8. The marriage between the petitioner no.1 and the respondent no.2 has already been dissolved vide judgment dated 29.03.2022 in divorce petition bearing HMA no.141/2022 titled as Sagar Taank and Meenakshi passed by the Court of Ms. Shalinder Kaur, Principal Judge, Family Court, Patiala House Courts, New Delhi.

9. The respective counsel for the petitioners and the respondent no.2 stated that as the petitioner no.1 and the respondent no.2 have already settled their disputes vide Settlement dated 08.09.2021, the terms and conditions of which have already been executed. The petitioner no.1 has paid the entire settled amount and his marriage with the respondent no.2 has already been dissolved vide judgment dated 29.03.2022, as such the present petition be allowed and the FIR bearing no. 0482/2018 along with consequential proceedings be quashed.

10. The respondent no.2 stated that she has settled all pending disputes with the petitioners out of her own free will and without any force, fear and coercion and such she does not have any objection if the present petition is This is a digitally signed order.

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11. The Additional Public Prosecutor for the respondent no.1/State also stated that as the petitioner no.1 and the respondent no.2 have already settled their disputes amicably vide Settlement dated 09.08.2021, as such he does not have any objection if the present FIR bearing no. 0482/2018 dated 26.11.2018 registered under sections 498A/406/34 IPC at P.S. Sagar Pur along with consequential proceedings including judicial proceedings is quashed.

12. The petitioner no.1 and the respondent no. 2 got married on 12.11.2016 and due to matrimonial differences, they are living separately since 07.05.2017 without any cohabitation. The petitioner no.1 and the respondent no.2 have already settled their pending disputes vide Settlement dated 09.08.2021, the terms and conditions of which have already been executed and the respondent no.2 has already received the entire settled amount. The marriage between the petitioner and the respondent no. 2 has already been dissolved as detailed hereinabove. No useful purpose shall be served if the proceedings arising out of FIR bearing no. 0482/2018 are allowed to be continued and it would be an exercise in futility.

13. After considering all facts, the present petition is allowed and FIR bearing no. 0482/2018 dated 26.11.2018 registered under sections 498A/406/34 IPC at P.S. Sagar Pur along with consequential proceedings including judicial proceedings stated to be pending in the Court of Ms. Shivangi Vyas, MM (Mahila Court), Patiala House Courts, Delhi/Successor Court is quashed.

14. The present petition alongwith pending applications, if any, stands This is a digitally signed order.

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DR. SUDHIR KUMAR JAIN, J SEPTEMBER 5, 2023/j/sd This is a digitally signed order.

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